

PRASANTO K. ROY

GUEST COLUMN

PROTECTING DATA, NOT PRIVACY

It's been over five years since a nine-judge bench of the Supreme Court gave a unanimous ruling holding privacy to be a fundamental right, enshrined in India's Constitution. The landmark judgment, one of whose authors is now the Chief Justice of India, clarified that the right to privacy could be infringed only when there was a compelling state interest for doing so. And it opened up the path to a privacy law, one that India still does not have.

The draft Digital Personal Data Protection Bill (DPDP), 2022, released by the ministry of electronics and information technology on November 18, inches towards that law on a meandering path. It is a big step forward, but, as many are pointing out, at least half a step back. We have been there. In 2018, a committee headed by Justice B.N. Srikrishna, after extensive consultations, came up with a report and a draft. After public feedback, a revised bill was tabled in Parliament in December 2019, and then referred to a joint parliamentary committee. The Covid-19 pandemic paused life, and the joint parliamentary committee finally tabled its report in the Lok Sabha in December 2021. Its 81 changes turned the bill into a new animal that was found to be a disaster: mandating local storage of data, throwing in non-personal data into the mix, among other things. So intense was the criticism that the government withdrew the bill and went back to the drawing board. The result is the latest version.



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This particular iteration of the data bill has a lot going for it from the industry's viewpoint. It has been simplified and contentious clauses such as criminal penalties (and whopping fines of a percentage of global turnover) have been removed. There's no non-personal data anymore, so businesses won't be forced to share proprietary data with the government—say, data about Uber's traffic and rides. Data localisation has been softened: your email and other data on global services will be allowed to be transferred to some trusted nations, to be notified by the government.

All good so far. So, why are privacy and civil society activists unhappy? Because this bill is not so great for privacy, unlike Europe's landmark General Data Protection Regulation (GDPR) law. The DPDP bill proposes near-blanket exemptions for government agencies from complying with key rules. It weakens the regulator proposed for this purpose: earlier named the Data Protection Authority, it will now be a board, beholden to the government. Over a dozen loose ends have been left for the government to fix, rather than the regulator. What is likely the country's biggest processor of data has become the *de facto* regulator, one that will effectively regulate itself.

Something that has really riled up civil society is the word 'digital' in the title, which narrows and limits the bill's scope, excluding information captured in a paper form. It also specifies automated processing only, a strange restriction that suggests that manually leaking personal information, or even taking a picture of a form with personal data and sharing it over email or on social media, may be excluded from the ambit of the bill.

What's next? Public consultation for the bill is on till December 17. If feedback is seriously incorporated, the ministry will take some time to rework the draft, and it is unlikely to be tabled in the winter session of Parliament, though it could make it there by February. The pushback is unlikely to be strong enough to delay it beyond that: corporate India is largely supportive of it, so criticism will likely be left to civil society and privacy activists.

Up ahead, beyond this bill, a new Digital India Act is expected to replace India's ageing Information Technology Act of 2000 (as well as this data protection bill, and a very contentious telecom bill whose draft was released in October this year).

If we do have a data protection law in 2023—this is not a privacy law—it won't be a month too soon. According to United Nations data, 137 out of 194 countries have put in place privacy and data protection laws. India is way, way behind the curve. ■

Prasanto K. Roy is a technology and public policy consultant

Illustration by SIDDHANT JUMDE